

SECOND EDITION

SOUTH AFRICAN Constitutional Law in Context

PUBLIC LAW

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OXFORD
UNIVERSITY PRESS
SOUTH AFRICA

In this regard, Woolman and Botha note:

The balancer is inclined to restrict her finding to the case at hand, as the next case may, ostensibly, require that a different balance be struck. While there may be advantages to such a judicious approach, ... there is a growing concern within the academy that the case-by-case approach to constitutional analysis, in general, and limitations analysis, in particular, blunts the transformative potential of the Final Constitution.¹²²

This is not just a problem with threshold questions and proportionality questions. It also conflates different aspects of the proportionality enquiry such as less restrictive means, overbreadth and reasonable accommodation.

In discussing the reasonable and justifiable enquiry, we follow the approach set out below: First, what is the purpose of the limiting measure (not importance yet)? Is it legitimate in an open and democratic society based on equality, freedom and human dignity? Second, what is the relationship between the limiting measure and its stated purpose? More specifically, are they rationally connected? Third, are there clear, alternate means available that are less restrictive on the full enjoyment of the right? Fourth, is the legitimate, rationally based limiting measure a balanced and proportionate limitation on the right in question, taking into account the degree of infringement, the nature of the right, the breadth of the measure and the social good it achieves? This is balancing and proportionality proper.

Stage one:

What is the purpose of the limitation and is it legitimate in an open and democratic society?

Stage two:

What is the relationship between the limitation and its legitimate purpose. Are they rationally connected?

Stage three:

Are there alternate, less restrictive means?

Stage four:

Is the limitation proportional taking into account the extent of the infringement, the nature of the right, the breadth of the limitation and the social good it achieves?

Stage five:

If the limitation is proportional, then the infringement is constitutionally valid.
If not, then the infringement is constitutionally invalid.

Figure 11.1 The steps in the justification enquiry

¹²² Woolman and Botha (2008) 161.

Purpose of penal measure	Stage on Constitutional objective
Deterrence	Deterrence has not been passed through the test without difficulty. The need for a deterrent to crime is a valid objective, but its open to question whether the state is justified in imposing it. It is indeed obvious that the action to prevent human life and human life violation by the state (para 117)

Table 11.1 Applying the threshold questions and the proportionality assessment in Makwanyane



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